

Form No. HCJD/C-121

ORDER SHEET

**IN THE LAHORE HIGH COURT
RAWALPINDI BENCH, RAWALPINDI.
JUDICIAL DEPARTMENT**

W.P.No.1993 of 2021

SHEERAZ KHAN, ETC. Versus **DEPUTY COMMISSIONER, CHAKWAL, ETC.**

S.No.of order / Proceeding	Date of Order/ Proceeding	Order with signature of Judge, and that of parties counsel, where necessary
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17.06.2021

Sardar Abdul Raziq Khan, Advocate for the petitioners.
Mirza Asif Abbas, Assistant Advocate General for
Punjab with Umer Sarwar, Assistant Commissioner,
Chakwal, Yaseen, D.S.P, Chakwal and Imtiaz Butt,
Inspector.

The petitioners are residents of Chakwal. It is their stance that petitioner No.2 is incharge of Hazrat Baba Peer Shah and Baba Sattar Shah shrines. As per claim of the petitioners, a religious event always takes place in the area of said shrines since ancient times. The event includes recitation of Holy Quran, Naat-e-Rasool Maqbool, Qawali, Kabadi Match, Bulls Match and other activities. The present event was scheduled for 15th, 16th and 17, June, 2021 regarding which district administration was accordingly informed through a written application on 20th May, 2021. No objection thereto was raised by District Administration, so the event accordingly commenced as per schedule on 15th June, 2021 but the local police intervened and extended threats of dire consequences to the petitioners and other members of the organization committee on the basis of some political considerations.

2. Learned counsel for the petitioners submitted that petitioners have every lawful right to organize the event. It is submitted that rights of the petitioners are guaranteed under the constitution of the Islamic Republic of Pakistan, 1973 (hereinafter referred as “Constitution”). Learned counsel maintained that interference by the police is motivated with political consideration whereas in the same vicinity, some other events have already taken place and the petitioners have been discriminated.

3. Conversely, learned Law Officer, while placing on record a report, submitted that in the prevailing circumstances of pandemic of COVID-19, the petitioners cannot be allowed to conduct the event as there is serious apprehension of spread of the disease. It is contended that no pick and chose has been made by the respondents in implementing the policy for curing the pandemic of COVID-19. Learned Law Officer argued that petitioners are adamant to abrogate the law.

4. Heard. Record perused.

5. There is no cavil to the proposition that every citizen has an inalienable right to be dealt with in accordance with law and to enter and move freely throughout Pakistan and to reside and settle in any part thereof but subject to any reasonable restrictions imposed by law in the interest of public order. Right to assemble is also guaranteed under Article 16 of the “Constitution” but such right is also neither unbridled nor unfettered. Article 16 of the “Constitution” is reproduced below for ready reference and convenience:-

“Every citizen shall have the right to assemble peacefully and without arms, subject to any reasonable restrictions imposed by law in the interest of public order.”

(Underlining supplied for emphasis)

It is manifestly clear from the above that right to assemble is subject to reasonable restrictions imposed by law in the interest of public order.

6. In order to institute a comprehensive system of civil administration in the Punjab for efficient administration and improved service delivery to the people, the Punjab Civil Administration Act, 2017 (hereinafter referred as “Act, 2017”) was promulgated wherein certain powers and functions have been assigned to the Commissioners, Deputy Commissioners and Assistant Commissioners of each District. The Commissioners, Deputy Commissioners, Assistant Commissioners and the officers subordinate to them may, in consultation with the respective head of the local government, exercise such powers within the area of their respective jurisdiction as the Relief Commissioner may delegate to them under Section 7 of the “Act, 2017”. By virtue of Section 13 of “Act, 2017” the government is vested with the power to declare the whole or any part of the Province, as the case may be, as calamity affected area under section 3 of the Punjab National Calamities (Prevention and Relief) Act, 1958 and in terms thereof notification No.SO(G)/ P&SHD/4-1/2021 dated 10th June, 2021 was issued. Clause-k of said notification is reproduced below for convenience and ready reference: -

“Sports, Festivals, Cultural and other events: There shall be complete ban on

contact sports (Karate, Boxing, Martial Arts, Rugby, Water Polo, Kabaddi & Wrestling), festivals, cultural, social and other events throughout the province.”

It is manifestly clear from the above that all kinds of festivals, cultural and other events were completely banned by the Government of Punjab in order to ensure public health, safety, control the spread of COVID-19 and conserve lives in the Province of Punjab.

7. It is an undeniable fact that not only our country but whole world is undergoing the effects of COVID-19, which started at the fag end of year 2019 as a pandemic and caused a disorder in the whole world. In order to cure and control the affects of pandemic, certain restrictions have been imposed by the Government/Executive whereby large gathering and the public events have been prohibited. Section 16 of the “Act, 2017” empowers the Deputy Commissioner to restrain the public from holding meeting, procession, assembling or gathering without his permission. The petitioners have not obtained any such permission from the Deputy Commissioner.

8. Admittedly the matter of banning Sports, Festivals, Cultural and other events is a policy decision. Law is well settled that it is the executive, who is vested with the power to frame a policy or regulation for a specific matter. A policy framed by the executive cannot be set at naught on the whims of a party, however, the policy making domain though rest with the executive but it cannot be unbridled or uncontrolled. This Court on the parameters of Article 199 of the “Constitution” can examine the propriety of

a policy and pass any order qua its implication if in the opinion of the Court the same smacks some malafide or offends the fundamental rights of the citizen guaranteed under the “Constitution”.

9. In furtherance to the above, one cannot lose sight of the fact that the exercise of constitutional jurisdiction in terms of Article 199 of the “Constitution” is discretionary, which can only be invoked in extraordinary and exceptional circumstances. This Court, while sitting in Constitutional jurisdiction ordinarily exercises restraint to interfere with the matters of public policy. No direction can be passed to the Government or the Executive to frame a particular policy or a policy which is person specific. Even otherwise it is not the function of the High Court to interfere in the policy making domain of the executive, while exercising jurisdiction under Article 199 of the “Constitution”, unless the same is ultra vires or the outcome of malafide. No such infirmity is pointed out by the petitioners in the impugned action. Reliance in this regard can be placed on the cases of “GOVERNMENT OF PUNJAB and others versus AAMIR ZAHOOR-UL-HAQ and others” (PLD 2016 Supreme Court 421), “GHULAM RASOOL versus GOVERNMENT OF PAKISTAN through Secretary, Establishment Division Islamabad and others” (PLD 2015 Supreme Court 6) and “DOSSANI TRAVELS PVT. LTD. and 4 others versus Messrs TRAVELS SHOP (PVT.) LTD. and others” (2013 SCMR 1749).

10. So far contention of learned counsel for the petitioners that petitioners have been discriminated on account of political consideration, suffice to observe that as per report submitted by the respondents, number of FIRs have already been got registered against the persons, who have violated government instructions on the matter in issue and if at all somebody was let free by an official while betraying his official duty, this will not perpetuate a wrong. Law is well-settled that two wrongs together cannot make one right.

11. There can be no second opinion that this Court can examine the executive actions on account of judicial review but one should keep in mind the difference between term judicial review and judicial overreach. This Court, in exercise of constitutional jurisdiction, is not supposed to overwhelm the executive actions, which are in accord with public policy. When apparently executive is performing its functions in accord with rules, policy in vogue, invocation of constitutional jurisdiction would amount to intrusion in the executive authority, which is against the principle of trichotomy of power under the “Constitution”.

12. The nutshell of above discussion is that this petition fails and is accordingly **dismissed in limine**.

(MIRZA VIQAS RAUF)
JUDGE

Approved for reporting.

JUDGE.